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# Lucy Letby: Who to Believe? review – just when you thought this case couldn't get any more confusing ...

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Hannah J Davies

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# Lucy Letby: Who to Believe? review – just when you thought this case couldn't get any more confusing ...

In May 2024, the New Yorker published an article with the headline "A British nurse was found guilty of killing seven babies. Did she do it?" Access to the online version of Rachel Aviv's piece was banned in the UK due to reporting restrictions, with Letby's retrial on an additional count of attempted murder then imminent. Rules aside, asking whether Letby was in fact innocent also felt taboo at the time, a pursuit for social media conspiracy theorists. Fast forward 15 months, and "did she do it?" is merely par for the course when it comes to the case, with even experts cited by the prosecution apparently unconvinced of Letby's guilt.

This new Panorama comes hot on the heels of an ITV documentary that aired earlier this month, [Lucy Letby: Beyond Reasonable Doubt?](#). That programme focused on holes in the evidence that was presented to the jury who found Letby guilty of killing seven babies and attempting to kill seven more at the Countess of Chester Hospital between 2015 and 2016. Hers had been, said Neena Modi, a professor of neonatal medicine, a "deeply disturbing" trial based on flawed evidence. Claims made in the trial were roundly rubbished by a panel of specialists who reviewed the case, and by experts found by the programme makers, making the evidence sound more like a series of sad anomalies than conclusive proof of wrongdoing by Letby. In any case, one would be unlikely to come away from that programme without at least a measure of doubt about her convictions.

And yet, many other doubts *do* persist, leading – one fears – to a continued stream of programmes about the case. This is the third instalment of Panorama that Judith Moritz has made about Letby; the first, released in 2023, was subtitled *The Nurse Who Killed*, another last year was named *Unanswered Questions*, and now, in keeping with the rising sense of uncertainty, we have *Who to Believe?*. Like the ITV documentary, it considers the limitations of the evidence that put the 35-year-old behind bars. Unlike that documentary, though, it also considers whether the alternative version of events put forward by experts such as Modi and Shoo Lee – who rebutted the prosecution's interpretation of his work on air embolisms – holds water.

It is a muddled hour of television, in which Moritz and producer-director Jonathan Coffey (who have also [written a book about the case](#) together) describe various things as conjecture, before supplying more conjecture of their own, and ultimately concluding that it's a right old mess. It certainly wouldn't be right to take the ITV documentary – or any other for that matter – as the ultimate authority on the case. But this Panorama seems to add very little in the way of conclusive information.

Take, for example, this lightly heated exchange between Moritz and Coffey, who are discussing whether or not it is significant that the prosecution's expert witness, Dr Dewi Evans, changed his mind on one of the babies' cause of death, from air pumped into the stomach to an intravenous air embolism. Moritz: "It's not like you had a situation where [someone was] saying, this person was shot ... actually, no sorry, there's no gunshot wounds at all, I've decided instead they drowned." Coffey: "Some people would say that's *exactly* what we're dealing with here." Moritz: "It's certainly a difficult case to get your head around." Coffey: "Well, some people would say it's *not* a difficult case to get your head around, that actually they have got their head around it and the prosecution expert evidence is all over the place." Moritz: "Yeah – and other people would say they got their head around it and *convicted* her!" It's more like a drivetime phone-in than serious investigative journalism.

Clearly, Moritz and Coffey care about the case, and about finding out whether Letby has indeed

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been wrongfully convicted. But in an investigation remarkable for the sheer number of theories involved – and now counter-theories – the addition of counter-counter-theories is hard to compute. A long tangent into the death of one child – Baby O – and how he may or may not have sustained injuries to his liver, only underscores the lack of consensus among experts, and the possibility of falling down rabbit holes at every turn. Similarly, inflated insulin levels in Baby F and Baby L lead to wildly different interpretations depending on who is explaining it all. We are told that the immunoassay tests that were used during the trial were highly unreliable, and shouldn't have been relied on in court. And yet, we also hear that those levels of insulin just cannot be explained away. Unless, of course, the tests were wrong ...? And around and around we go.

In determinedly not taking any claims at face value, *Who to Believe?* will surely confuse viewers even more, and brings us no closer to understanding whether there is indeed a compelling alternative to the events set out by the prosecution. It concludes that Letby was either "spectacularly bad" at her job or this was a major miscarriage of justice. Taking us right back to where we started.

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